

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Hafner	Team: Squad #04	CCRB Case #: 202309271	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 09/30/2023 9:52 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/30/2025	Precinct: 13		
Date/Time CV Reported Mon, 10/02/2023 10:37 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 10/02/2023 10:37 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Reginal Pierre	01956	939747	013 PCT
2. PO Sean Virella	22977	970300	013 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Reginal Pierre	Abuse: Police Officer Reginal Pierre improperly used his/her/their body-worn camera.	A . Substantiated
B . PO Sean Virella	Abuse: Police Officer Sean Virella improperly used his/her/their body-worn camera.	B . Substantiated
C . PO Reginal Pierre	Abuse: Police Officer Reginal Pierre interfered with § 87(2)(b) use of a recording device.	C . Unfounded
D . PO Reginal Pierre	Abuse: Police Officer Reginal Pierre failed to provide § 87(2)(b) with a business card.	D . Within NYPD Guidelines
E . PO Sean Virella	Abuse: Police Officer Sean Virella failed to provide § 87(2)(b) with a business card.	E . Substantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On October 2, 2023, § 87(2)(b) made this complaint via the CCRB website.

On September 30, 2023, at approximately 9:45pm, Police Officer Reginol Pierre and Police Officer Sean Virella, both from the 13th Precinct, responded to a 911 regarding a dispute § 87(2)(b) in Manhattan. PO Pierre and PO Virella improperly used their body-worn cameras (**Allegation A: Abuse of Authority, substantiated**)(**Allegation B: Abuse of Authority, substantiated**). § 87(2)(b) was filming the interaction with the cellphone's flashlight on. PO Pierre allegedly told § 87(2)(b) to stop filming (**Allegation C: Abuse of Authority, unfounded**). § 87(2)(b) asked PO Pierre and PO Virella for their business cards and neither provided them (**Allegation D: Abuse of Authority, within NYPD guidelines**)(**Allegation E: Abuse of Authority, substantiated**). § 87(2)(g), § 87(4-b)

This interaction resulted in no arrest or summons.

The CCRB obtained footage from § 87(2)(b) (BR 1) and body-worn camera footage from PO Virella (BR 2) and PO Pierre (BR 3).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Reginol Pierre improperly used his/her/their body-worn camera.

Allegation (B) Abuse of Authority: Police Officer Sean Virella improperly used his/her/their body-worn camera.

§ 87(2)(b) statement (BR 4) made no mention of this allegation.

In § 87(2)(b) footage (BR 1), at run time 00:06, PO Pierre is faced away from the camera and reaches across his torso with his left hand, and shortly thereafter a beep, like that of a body-worn camera, is heard. At runtime 00:09, PO Virella's hand is shown moving away from an area near to his body-worn camera.

In PO Virella's body-worn camera (BR 2), the first minute is captured before activation without audio. In the first 20 seconds, PO Pierre and PO Virella appear to be speaking to the lobby clerk. At 00:47, § 87(2)(b) comes out of the elevator and begins speaking to the officers. PO Virella activates his camera at 00:58.

In PO Pierre's body-worn camera (BR 3), the first minute is captured before activation without audio. At 00:04, PO Virella can be seen speaking to the lobby clerk. At 00:49, in the bottom left corner of the frame, § 87(2)(b) leg can be seen. PO Pierre activates his camera at 00:59.

PO Virella stated (BR 5) that he asked the lobby clerk if anyone had been arguing or if he had heard "anything going on." PO Virella was unsure exactly when he activated his body-worn camera, but believed he was already in the lobby when he activated it. PO Virella had his body-worn camera activated when § 87(2)(b) came down in the elevator. PO Virella did not recall if he had his body-worn camera activated while speaking to the lobby clerk.

PO Pierre stated (BR 6) that he spoke to the clerk and told him they had received a call for a dispute. PO Pierre asked the clerk if he knew the nature of the call. PO Pierre believed that he had activated his camera when he arrived. PO Pierre was shown § 87(2)(b) footage from 00:04s

until 00:10s mark and could not identify what he was doing with his hand when he reached it across his body or identify the beep that played in that same clip. PO Pierre was shown footage from his body-worn camera from 00:55s until 01:04s. In the clip, the audio activated at the 1:00s mark. PO Pierre asserted that his camera was activated prior to § 87(2)(b) coming downstairs. PO Pierre believed that this clip did not specifically show him activating his body-worn camera.

According to NYPD Patrol Guide Procedure 212-123 (BR 7), “Police Action” is defined as “Any police service, as well as law enforcement or investigative activity conducted in furtherance of official duties. Police action includes responding to calls for service.” This section further mandates that Uniformed Members of the Service “[a]ctivate BWC prior to engaging in any police action.”

Both PO Pierre and PO Virella stated that they spoke to the lobby clerk in furtherance of their duties responding to a call as part of their responsibilities assigned to sector patrol. Both officers did not activate their body-worn cameras until after this conversation and partially into a conversation with the original complainant, § 87(2)(b) § 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **substantiated**.

Allegation (C) Abuse of Authority: Police Officer Reginal Pierre interfered with § 87(2)(b) use of a recording device.

§ 87(2)(b) stated (BR 4) that PO Pierre told her that he did not feel comfortable with her filming the officers and that if she stopped filming, then PO Pierre could talk with her.

In § 87(2)(b) footage (BR 1), at runtime 00:01, PO Pierre holds his hand over his face and tells § 87(2)(b) that she “cannot do this in my—come on.” PO Pierre tells § 87(2)(b) that he is “not going to talk to” her and she “needs to turn this off.” At runtime 00:10, PO Pierre tells § 87(2)(b) that he cannot talk with “this light on my face.” At 00:16, PO Pierre asks if § 87(2)(b) is “going to turn it off.” When she refuses, PO Pierre says, “when you turn it we will talk.”

In PO Virella’s body-worn camera (BR 2), at runtime 00:50, § 87(2)(b) light from her phone is visible and pointed towards PO Pierre. The light remains on throughout the footage.

PO Pierre stated (BR 6) that § 87(2)(b) had the light on her phone on. The light was on PO Pierre’s face. § 87(2)(b) was approximately 10 feet away from PO Pierre. PO Pierre is sensitive to light, especially white light. PO Pierre asked § 87(2)(b) to turn off the light. PO Pierre said “Ma’am, ma’am, can you please?” and was “very courteous” and “professional.” § 87(2)(b) refused. PO Pierre told § 87(2)(b) that if she was not going to turn off the light he would walk out. PO Pierre told § 87(2)(b) that the light was “blinding.” PO Pierre believed that § 87(2)(b) was filming. PO Pierre did not have any issues with § 87(2)(b) filming. PO Pierre never spoke to § 87(2)(b) about her filming the situation. PO Pierre was accustomed to people filming him, as that was “part of the job.” PO Pierre “never object[s] to any filming.”

PO Virella stated (BR 5) that he had known prior to the incident that PO Pierre had eyes sensitive to light. PO Pierre could be driving, and high-beam light could affect his eyes.

§ 87(2)(g)
None of the collected footage captures PO Pierre telling § 87(2)(b) to stop filming the interaction. The footage does capture PO Pierre telling § 87(2)(b) to turn off the

light. § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unfounded**.

Allegation (D) Abuse of Authority: Police Officer Reginal Pierre failed to provide § 87(2)(b) with a business card.

Allegation (E) Abuse of Authority: Police Officer Sean Virella failed to provide § 87(2)(b) with a business card.

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) stated (**BR 4**) that she told the officers that they had to give her their “name card” and “identification.” PO Pierre and PO Virella were moving fast and were trying to “escape.” While the officers were getting into their vehicle § 87(2)(b) told them that she needed their “name cards.” PO Pierre responded that they already had. The officers left without § 87(2)(b) receiving a business card.

In § 87(2)(b) footage (**BR 1**), at runtime 00:33, she tells officers that she does not have their “id tags,” and PO Pierre responds that he “gave it to her” and repeats his shield number. At 00:36, § 87(2)(b) asks for a card. At 00:40, § 87(2)(b) asks for a card. Neither officer reacts to either request, and § 87(2)(b) is not provided with a card.

In PO Virella’s body-worn camera (**BR 2**), at runtime 1:25, § 87(2)(b) can be heard asking for a card. At 1:27, § 87(2)(b) repeats her question. PO Virella gets in his car and does not respond.

In PO Pierre’s body-worn camera (**BR 3**), at runtime 1:28, § 87(2)(b) can be faintly heard asking for a card. At 1:30, § 87(2)(b) can be faintly heard asking for it again.

PO Virella initially stated (**BR 5**) that he did not recall § 87(2)(b) asking him for a business card. When shown his body-worn camera footage from the 1:07s mark until 1:31s, he added to his statement. § 87(2)(b) asked PO Virella for his name, and he gave it to her. § 87(2)(b) asked PO Virella for his nametags, but they did not have those as members of the police. § 87(2)(b) asked for a card. PO Virella did not “have any cards on [himself] at the moment.” PO Virella’s understanding was that he did not need to provide anything further than his name and shield number when he was out of business cards. PO Virella was not refusing to give § 87(2)(b) information, but at the time he did not have any cards left. PO Virella had run out of cards because he gave them out earlier. PO Virella believed he might have had more cards back at his command.

PO Pierre stated (**BR 6**) that he did not hear § 87(2)(b) ask for business cards or “name cards.” PO Pierre did not refuse to provide a business card and at no point was it “asked of [him].”

NYPD Administrative Guide 304-11 (**BR 8**) states that officers “may offer business cards, as appropriate, and at their discretion, in situations that fall outside of the defined law enforcement activities. In addition, members are also to provide business cards, as appropriate, at the request of members of the public.” When out of business cards, officers must “Allow member of the public ample time to write down identification information.” The procedure also states that officers are required to carry an appropriate amount of preprinted and generic business cards.

§ 87(2)(b) alleged that she asked both PO Virella and PO Pierre for their cards, and the video

footage largely corroborated this fact.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation D** be closed as **within NYPD guidelines**.

§ 87(2)(g), § 87(4-b) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation E** be closed as **substantiated**. § 87(2)(g), § 87(4-b) [REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- PO Pierre (**BR 10**) has been a member of service for 18 years and has been a subject in three other CCRB complaints and four other allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Virella (**BR 11**) has been a member of service for three years and has been a subject in one other CCRB complaints and one other allegation, and this case has not been closed yet. § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of December 12, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR 12**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 4

Investigator:		Inv. Daniel Hafner	January 6, 2025
	Signature	Print Title & Name	Date

Squad Leader:	Raquel Velasquez	IM Raquel Velasquez	January 6, 2025
	Signature	Print Title & Name	Date

Reviewer:

Signature

Print Title & Name

Date